



File No.: EXP202204085

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: Mr. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on March 31, 2022, against Ms. B.B.B. with NIF ***NIF.1 (hereinafter, the complained party), regarding the installation of a video surveillance system located at ***ADDRESS.1, with indications of a possible violation of the provisions of Article 5.1.c) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR).

The complainant states that the complained party has surveillance cameras directed at their home, without prior authorization for this.

They provide images of the location of the cameras and a report issued by Agents of the Local Police of ***LOCALITY.1 dated August 28, 2021, which indicates, as relevant to this procedure, that "(...) the complained party has surveillance cameras clearly focused on their home, facts for which they feel harassed, with a clear intimidating character. Such statements are verified by the agents, observing surveillance cameras clearly and undoubtedly directed towards their home. The agents cannot determine if the mentioned cameras are operational, although the interviewed party indicates that when the light goes out, a red signal indicating they are operational is observed inside them. (...)”

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was returned to this Agency on May 2, 2022, with the annotation “Returned to Origin due to Excess (Not collected at the office).”

Therefore, the forwarding was reiterated, being returned again on May 25, 2022, for the same reason.

THIRD: On June 30, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

FOURTH: On October 3, 2022, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the complained party for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

In response to this initiation agreement, the complained party submitted a document stating that the cameras are simulated and that they provided the supporting documentation during the instruction of procedure E/09875/2020, whose resolution ordered the filing of the proceedings, without any changes in the circumstances regarding those cameras.

FIFTH: On November 30, 2022, the instructor of the procedure decided to open a period for the practice of evidence, considering the complaint filed by the complainant and its documentation, the documents obtained and generated by the General Subdirectorate of Data Inspection, and the allegations presented by the complained party as reproduced for evidentiary purposes.

SIXTH: On December 21, 2022, a resolution proposal was made in which, in accordance with the evidence available in the present sanctioning procedure, it was considered that the installed cameras were fictitious, serving a deterrent purpose due to various conflicts in the area affecting the property of

the complained party, and therefore, since there was no “data processing,” it was appropriate to propose the filing of the present proceedings.

In this proposal, a period of 10 days was granted for the complained party to present any arguments they deemed appropriate in their defense, as well as to submit any documents and information they considered pertinent, in accordance with Article 89.2 of the LPACAP.

The attempt to notify the resolution proposal was unsuccessful, being returned to this Agency by the postal service on January 21, 2023, with the annotation “Returned to origin due to excess (Not collected at the office).”

In light of all that has transpired, the Spanish Agency for Data Protection considers the following facts proven in the present procedure,

FACTS

FIRST: On March 31, 2022, a complaint was received by this Spanish Agency for Data Protection indicating that the complained party has surveillance cameras directed at the complainant's home, without prior authorization for this.

They provide images of the location of the cameras and a report issued by Agents of the Local Police of ***LOCALITY.1.

SECOND: The complained party, in their written allegations to the Initiation Agreement of the Procedure, states that the cameras are simulated and that they provided the supporting documentation during the instruction of procedure E/09875/2020,

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/7

whose resolution ordered the filing of the proceedings, without any changes in the circumstances related to said cameras.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR and as established in Articles 47 and 48.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

II

On March 31, 2022, a complaint was received by this Spanish Data Protection Agency regarding the installation of a video surveillance system with cameras capable of capturing the residence of the complainant.

Article 5.1 c) of the GDPR provides that personal data shall be “adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’).”

It should be noted that individuals are responsible for ensuring that the systems installed comply with current legislation.

The cameras must be directed towards private space, avoiding intimidating neighboring residents with such devices, as well as monitoring transit areas without justified cause.

Individuals may not install devices for capturing images of public space, except in cases permitted by regulations, as this is the exclusive competence of the State Security Forces and Corps.

The processing of images through a video surveillance system, in order to comply with current regulations, must meet the following requirements:

- Respect the principle of proportionality.
- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April

4.

- The video cameras may not capture images of individuals outside the private space where the video surveillance system is installed, as the processing of images in public places may only be carried out, unless government authorization is present, by the Security Forces and Corps. Images or spaces owned by third parties may not be captured or recorded without the consent of their owners, or, where applicable, of the individuals present in those spaces.

This rule admits some exceptions as, in some cases, for the protection of private spaces where cameras have been installed on facades or inside, it may be necessary to guarantee the security purpose by recording a portion of the public road. That is, cameras and video cameras installed for security purposes may not obtain images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location, and extraordinarily, the minimum space for that purpose will also be collected. Therefore, cameras could exceptionally capture the minimally necessary portion for the intended security purpose.

- The duty to inform those affected, as provided in Articles 12 and 13 of the GDPR and 22.4 of the LOPDGDD, must be fulfilled.

Specifically, at least one informative sign must be placed in the monitored areas, located in a sufficiently visible place, both in open and closed spaces, identifying at least the existence of processing, the identity of the data controller, and the possibility of exercising the rights provided in those provisions. Furthermore, the information referred to in the aforementioned GDPR must be kept available to those affected.

- The data controller must maintain a record of processing activities carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.

- The installed cameras may not obtain images of private spaces belonging to third parties and/or public spaces without duly accredited justified cause, nor may they affect the privacy of passersby freely transiting the area. Therefore, the placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without justified cause is not permitted.

- In no case will the use of surveillance practices beyond the environment subject to the installation be allowed, particularly not affecting surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

III

The respondent, in their written allegations to the Agreement to Initiate Proceedings, states that the cameras are simulated, and that they provided the supporting documentation during the instruction of procedure E/09875/2020, whose resolution ordered the filing of the proceedings, without any changes in the circumstances related to said cameras.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/7

IV

In the present case, it is necessary to analyze the alleged illegality of the installation of a video surveillance system at ***ADDRESS.1.

Upon examining the allegations and evidence provided, it can be concluded that the installed cameras are fictitious, serving a deterrent purpose due to various conflicts in the area that affect the property of the respondent. Therefore, since there is no "data processing" taking place, it is appropriate to propose the filing of the present proceedings.

Notwithstanding the above, it is advisable that these cameras are oriented towards private spaces, avoiding intimidating third parties who may think that they are operational or affecting unauthorized areas, which could lead to new actions in this regard.

Article 28.7 of the LPACAP states that "The interested parties shall be responsible for the veracity of the documents they present."

It should be noted that individuals may install fake cameras on their private property, provided that they

are directed exclusively towards their property, avoiding intimidating third parties with such devices. The respondent, in a previous procedure conducted by this Agency, provided a document that certifies the fictitious nature of the cameras, accepting the allegations made, being aware that at any time this agency may proceed to verify the system in question.

In the installation of such "simulated" devices, the necessary caution must be taken to avoid intimidating third parties who are unaware of their fictitious nature, who may believe they are being recorded by them, thus avoiding their orientation towards public space.

Although in the past the AEPD has sanctioned data controllers for the use of such devices, it is currently understood that the use of simulated cameras does not constitute a violation of the fundamental right to data protection.

The Judgment of the First Chamber of the Supreme Court of November 7, 2019, declares that the installation of a false video surveillance camera, identical in appearance to fully operational ones, is capable of restricting the freedom of third parties.

The Supreme Court reasons that when an individual is unaware that they are being filmed, they behave with a naturalness and spontaneity that does not occur otherwise. And that "the claimant's right to the tranquility of their private life also includes the right not to have to endure a permanent uncertainty" about whether the camera in question is operational or whether "RCRE has replaced it with another fully functional one of identical appearance."

Therefore, it must be taken into account that the described conduct, if excessive, may have consequences in other areas of law, and it is advisable to adopt the necessary precautions to avoid excessive orientation towards public space, limiting it to the façade of the dwelling that is intended to be protected.

Likewise, it is advisable to follow the indications of the local Forces and Corps, who can guide you on the matter if needed, thus avoiding new complaints in this regard.

V

The principle of the right to the presumption of innocence, recognized as a fundamental subjective right in Article 24 of the Spanish Constitution, prevents the imposition of an administrative sanction when there is no obtained and verified evidence of the facts that motivate the accusation or of the alleged infringer's involvement in them, applying the principle "in dubio pro reo" in case of doubt regarding a specific and determined fact, which obliges in any case to resolve such doubt in the most favorable manner for the interested party.

The aforementioned right to the presumption of innocence is also expressly included in Article 53.2.b) of the LPACAP, which establishes that:

"2. In addition to the rights provided for in the previous section, in the case of administrative procedures of a sanctioning nature, the alleged responsible parties shall have the following rights: [...] b) To the presumption of non-existence of administrative responsibility until proven otherwise."

In relation to this principle, the Constitutional Court in its Judgment 76/1990, of April 26, considers that the right to the presumption of innocence entails: "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof lies with the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the results of the evidence presented, freely evaluated by the sanctioning body, must result in an acquittal."

VII

Upon reviewing the file as a whole, it has not been disproven that the installed cameras are simulated.

Therefore, in accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the FILING of the present proceedings as there is no evidence of any administrative infringement.

SECOND: TO NOTIFY this resolution to Ms. B.B.B.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/7

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

938-181022

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es